

HOUSE BILL No. 1254

DIGEST OF INTRODUCED BILL

Citations Affected: IC 25-13-1; IC 25-14-1-3.

Synopsis: Various dental matters. Amends the educational requirements for dental hygienists. Amends the requirements for administration of nitrous oxide by a dental hygienist. Allows the state board of dentistry to establish additional requirements for an applicant who has failed the licensure examination at least three times.

Effective: July 1, 2026.

Goss-Reaves

January 5, 2026, read first time and referred to Committee on Public Health.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1254

A BILL FOR AN ACT to amend the Indiana Code concerning professions and occupations.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 25-13-1-4, AS AMENDED BY P.L.103-2011,
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 4. (a) Any person desiring to practice dental
4 hygiene in Indiana must procure from the board a license to practice
5 dental hygiene. To procure a license, the applicant must submit to the
6 board proof of graduation from an institution ~~for educating dental~~
7 ~~hygienists that is approved by the board~~ **described in section 6(2) of**
8 **this chapter** and other credentials required by this chapter, together
9 with an application on forms prescribed and furnished by the board.
10 Each applicant must pay to the board an application fee set by the
11 board under section 5 of this chapter at the time the application is made
12 and must pass an examination administered by an entity approved by
13 the board. The board may establish under section 5 of this chapter
14 additional requirements as a prerequisite to taking an examination for
15 any applicant who has failed the examination two (2) or more times.
16 Application fees are not refundable.
17 (b) An applicant described under subsection (a) shall, at the request



of the board, make an appearance before the board.

SECTION 2. IC 25-13-1-5 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) The board shall enforce this chapter.

(b) The board may adopt rules consistent with this chapter and with IC 25-14-1 necessary for the proper enforcement of this chapter, the examination of dental hygienists, **educational requirements described in section 6(2) of this chapter**, and for the conduct of the practice of dental hygiene.

(c) The board may utilize a dental hygienist education program's accreditation by the Commission on Dental Accreditation of the American Dental Association as evidence that the program has met all or part of the standards for dental hygienist education programs established by the board.

SECTION 3. IC 25-13-1-6, AS AMENDED BY P.L.264-2013, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. An applicant:

(1) must not have been convicted of a crime that has a direct bearing on the applicant's ability to practice competently;

(2) must be a graduate of a:

(A) school for dental hygienists that:

~~(A)~~ (i) is accredited by the Commission on Dental Accreditation of the American Dental Association;

~~(B)~~ (ii) is recognized by the board; and

~~(C)~~ (iii) requires a formal course of training of not less than two (2) years of eight (8) months each; or

(B) dental college in a foreign country with a degree that is substantially similar to a doctorate of:

(i) dental surgery; or

(ii) dental medicine;

determined and approved by the board;

(3) must pass an examination administered by an entity approved by the board; ~~and~~

(4) may not take the examination described in subdivision (3) more than three (3) times; **and**

(5) if the applicant is a graduate of a dental college described in subdivision (2), must submit the applicant's academic transcripts for review by the board.

SECTION 4. IC 25-13-1-10.7, AS ADDED BY P.L.35-2020, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10.7. (a) A dental hygienist or dental assistant (as defined in IC 25-14-1-1.5(4)) may administer nitrous oxide under the



direct supervision of a licensed dentist if the dental hygienist or dental assistant has:

(1) **either:**

(A) been employed in a dental practice for at least one (1) year; or

(B) ~~has~~ graduated from a program:

(i) accredited by the Commission on Dental Accreditation of the American Dental Association; **or**

(ii) **approved by the board;**

(2) satisfactorily completed a three (3) hour didactic nitrous oxide administration course **that:**

(A) ~~containing~~ **contains** curriculum on pharmacology, biochemistry, anatomy of nitrous oxide administration, emergency procedures, and the mechanics of operating a nitrous unit; **and**

(B) **is** accredited by the Commission on Dental Accreditation of the American Dental Association **or approved by the board;** and

(3) demonstrated clinical competency on at least five (5) patients under the direct supervision of a licensed Indiana dentist whose license is in good standing.

(b) The licensed Indiana dentist supervising the clinical competency under subsection (a)(3) shall provide to the dental hygienist or dental assistant a signed affidavit certifying the competency.

(c) Upon receipt of the affidavit provided to a dental hygienist or dental assistant under subsection (b), the provider of an educational program or curriculum described in subsection (a)(2) shall issue a certificate of completion to the dental hygienist or dental assistant. The certificate of completion must be publicly displayed in the dental office of the dental hygienist or dental assistant.

(d) Before permitting a dental hygienist or dental assistant to administer nitrous oxide, the supervising dentist shall:

(1) verify that the dental hygienist or dental assistant has completed the requirements of subsection (a);

(2) determine the maximum percent-dosage of nitrous oxide to be administered to the patient; and

(3) ensure that any administration or monitoring of nitrous oxide by dental hygienists or dental assistants is done in accordance with relevant guidelines and standards developed by the American Dental Association or the American Academy of Pediatric Dentistry.

SECTION 5. IC 25-14-1-3, AS AMENDED BY P.L.264-2013,



1 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
2 JULY 1, 2026]: Sec. 3. (a) A person desiring to begin the practice of
3 dentistry in Indiana shall procure from the board a license to practice
4 dentistry in Indiana. Except as provided in section 4.5 of this chapter,
5 to procure the license, the applicant must submit to the board proof of
6 graduation from a dental college recognized by the board. The board
7 may recognize dental schools accredited by the Commission on Dental
8 Accreditation of the American Dental Association, if the board is
9 satisfied that the recognition is consistent with the board's
10 requirements. Every applicant must pass an examination administered
11 by an entity approved by the board and, **except as provided in**
12 **subsection (b)**, may not take the examination more than three (3)
13 times.

14 **(b) The board may establish additional requirements for an**
15 **applicant who has failed the examination at least three (3) times.**
16 **The applicant must complete the additional requirements before**
17 **the applicant may take the examination again.**

18 ~~(b)~~ (c) A fee paid under this article may not be refunded.

